

- and soft copy(ies) of compromised data
- ❑ Access control mechanism details, i.e., who had what kind of the access to the compromised system
- ❑ A list of suspects
- ❑ All relevant information that might lead to answers to the following questions:
 - ❑ What? (What has been compromised?)
 - ❑ Who? (Who might have committed the crime?)
 - ❑ When? (When was the crime committed?)
 - ❑ Why? (Why the crime might have been committed)
 - ❑ Where? (Where the impact of the attack is; identifying the target system on a network)
 - ❑ How many? (How many systems have been compromised by the attack)

This is what is required in the case of a large-scale attack. But if you are an individual and your home computer has been compromised, here's what you'll need to bring along as proof:

- ❑ Extended headers of offending e-mail(s)
- ❑ Soft copy(ies) as well as hard copy(ies) of offending e-mail
- ❑ Do not delete the offending e-mail(s) from your inbox
- ❑ Save a copy of the offending e-mail(s) on your computer's hard disk

About the types of crimes punishable under the IT Act of 2000, Duggal explains, "Some acts have been detailed as penal offences, including damage to computer source code, hacking, publishing obscene electronic information, breach of a protected system, publishing a false Digital Signature Certificate in certain particulars or for fraudulent purposes, and breach of confidentiality and privacy."

However, he also agrees that the laws are dated. "With the passing of time, new kinds of cyber crimes are emerging, and there is an urgent need to constantly update the laws so they remain effective," he says.

complainant: he needs to constantly pursue, educate and lead the law enforcement agencies into registering the case. I think amendments need to be made to Indian cyber law to provide far more effective legal remedies.

In addition, I am of the strong opinion that the quantum of punishment to be accorded for cyber crimes needs to be enhanced. Today, hacking is only punishable with three years of imprisonment. Therefore, for example, I can technically hack into the systems of one of the most prominent banks, steal information worth crores of rupees, and only be punished with three years of imprisonment and a fine of Rs 2 lakh. In order for punishment to have a deterrent effect, the quantum of punishment needs to be higher.

What has been the most serious cyber crime in India till date?

The most serious cyber crime in India till date has been one involving Dr L Prakash, one of the senior-most orthopaedic surgeons in the country, based in Chennai. Dr Prakash was arrested for taking his patients and clients to his coast house and then forcing them to strip, recording and photographing them in a pornographic, sexually explicit way. This case was registered under Section 67 of the Information Technology Act, 2000, and involved the wives of top-ranking officials and other people. This case merits attention because it is the first and only case of cyber crime conviction in the country.

Are corporates in India prepared to fight cyber crimes against them—economic or otherwise?

In our country, any cyber crime registration receives extensive press coverage, and a lot of the time, companies do not really want to register cyber crimes for fear of undue publicity, or of losing potential business. However, we do have some instances where companies have effectively prosecuted the offenders in cyber crime cases. Ultimately, it is a decision that needs to be taken by the management of the company.

Can ethical hacking be a tool against cyber crime? Can Indian laws interpret it to benefit individuals and organisations?

Ethical hacking can be a tool against cyber crime. Ethical hackers basically try to find security loopholes in computer systems and advise the owners of such systems about the need for patching such loopholes.

In our country, it was thought that ethical hacking is a crime, and as such was not allowed. But if you peruse Section 60 of the IT Act of 2000, you'll realise that the law has made a distinction between hacking and ethical hacking. When dealing with hacking, the law states that the act must be done with the knowledge that it is likely to cause wrongful loss or damage to someone.

However, when one engages in ethical hacking, there is no question of causing wrongful loss to the owner or person in charge of a computer, computer system or computer network, since this is done with implicit consent.

Does the average Indian Internet/computer user know when he is committing a cyber crime or when one is committed against him?

Unfortunately, the average Indian Internet or computer user invariably does not know when he or she is committing a cyber crime. Similarly, he or she also does not know when one is being committed against him. There is an extremely low level of awareness concerning cyber crimes amongst normal Internet users. Even experienced Netizens are normally wary of the IT Act of 2000. People invariably believe that Indian cyber law is a very complex piece of legislation, and that their interests would be best met if they kept away from it.

What plagues the Indian justice system when it comes to tackling cyber crimes?

There's a need to do a lot of activities as far as orienting law enforcement agencies and the judiciary of the country is concerned. The judicial system deals with all kinds of offences in the actual world. However, cyber law being a relatively new law and a special legislation, there's a need for special training and treatment concerning the same. There's a need to constantly educate and orient the judicial system to ensure they are appropriately equipped to deal with cyber crime cases. Right now, very few cyber crime cases eventually land up in court. However, I believe that with each passing month, the number of cyber crime cases in India will increase.

It therefore becomes absolutely imperative that the judges concerned be fully acquainted with the nuances of cyber crime trial and prosecution, and how to deal with various technicalities such as appreciation of electronic evidence, electronic records, as also data or information in electronic form.